

Ryan Burkhardt
Franklin Mountain San Marcos I, LP
16830 Addison Road
Addison, Texas 75001

April 11, 2023

Amanda Hernandez, AICP, CNU-A
City of San Marcos
Director of Planning & Development Services
630 E. Hopkins,
San Marcos, Texas 78666

RE: Minor changes to the Amended and Restated Development Agreement, dated January 17, 2023 (the “SMART Terminal Development Agreement” or the “Agreement”), recorded in the Caldwell County Real Property records under filing number 2023-001629, between the City of San Marcos, Texas, a home-rule municipal corporation (the “City”) and Franklin Mountain San Marcos I, LP, a Texas limited partnership (the “Owner”)

Ms. Hernandez,

As the Owner under the SMART Terminal Development Agreement and in accordance with Subsection 6.04(B) of said Agreement, please accept the following minor changes to the Agreement:

1. **Exhibit “B”**, the Conceptual Land Use Plan, is hereby replaced with the attached **Schedule “B”**, which (i) provides for a 100-foot buffer on the portions of the Property surrounding Reedville; and (ii) provides for an exclusive area where container storage is allowed up to 80’ in height, as contemplated in Section 1.04(B)(7).
2. **Exhibit “G”**, the Cut-Fill Extents Exhibit, is hereby replaced with the attached **Schedule “G”**, which designates additional buffer zones for certain floodplains on the Property.

In accordance with the requirements of Subsection 6.04(B) of the Agreement, as the Director of Planning & Development Services of the City of San Marcos, please evidence your approval of the proposed minor changes by signing below.

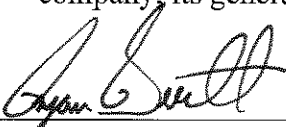
* * * * *

In addition to the minor changes requested above, as Owner of the Property, Franklin Mountain San Marcos I, LP, hereby agrees to ensure that, after full development of the Property, at least 75 percent of increased total suspended solids are removed from stormwater. Further, Owner agrees that outfall slide gates, or other means of discharge control, shall be installed on all detention ponds on the Property included in the Development Agreement.

Sincerely,

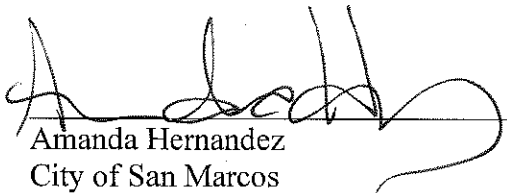
FRANKLIN MOUNTAIN SAN MARCOS
I, LP, a Texas limited partnership

By: Scarborough San Marcos GP
LLC, a Texas limited liability
company, its general partner

By: 
RYAN BURKHARDT, Manager

As to approval of the minor changes
in Sections 1 & 2:

As to form:


Amanda Hernandez
City of San Marcos
Director of Planning & Development Services

Barbara L.
Quirk

Digitally signed by Barbara L. Quirk
DN: cn=Barbara L. Quirk, c=US, o=City
of San Marcos, ou=Legal Department,
email=bquirk@sanmarcostx.gov
Date: 2023.04.12 12:58:13 -05'00'
Barbara L. Quirk
City of San Marcos
Interim City Attorney

EXHIBIT B: CONCEPTUAL LAND USE PLAN

ISSUED APRIL 5, 2023

- NOTES:
1. THE TOTAL PROJECT AREA IS ±1,980 ACRES
 2. THE AREA OF FEMA-MAPPED FLOOD PLAIN WITHIN THE PROJECT IS ±325 ACRES

LEGEND

RAILROADS	RIVERS AND STREAMS	HEAVY COMMERCIAL
CITY LIMITS	WATER BODIES	GREEN BELT/DRAINAGE
EXTRATERRITORIAL JURISDICTION (ETJ)	FLOODPLAIN	HEAVY INDUSTRIAL
EXCLUSIVE AREA WHERE CONTAINER STORAGE IS ALLOWED UP TO 80' IN HEIGHT PER DA SECTION 1.04.B.7	100' WIDE REEDVILLE RESIDENTIAL BUFFER	

Kimley»Horn

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13455 NOEL ROAD, TWO GALLERIA OFFICE
TOWER, SUITE 700
DALLAS, TEXAS 75240
PHONE: 972-770-1300
TEXAS REGISTERED ENGINEERING FIRM F-928

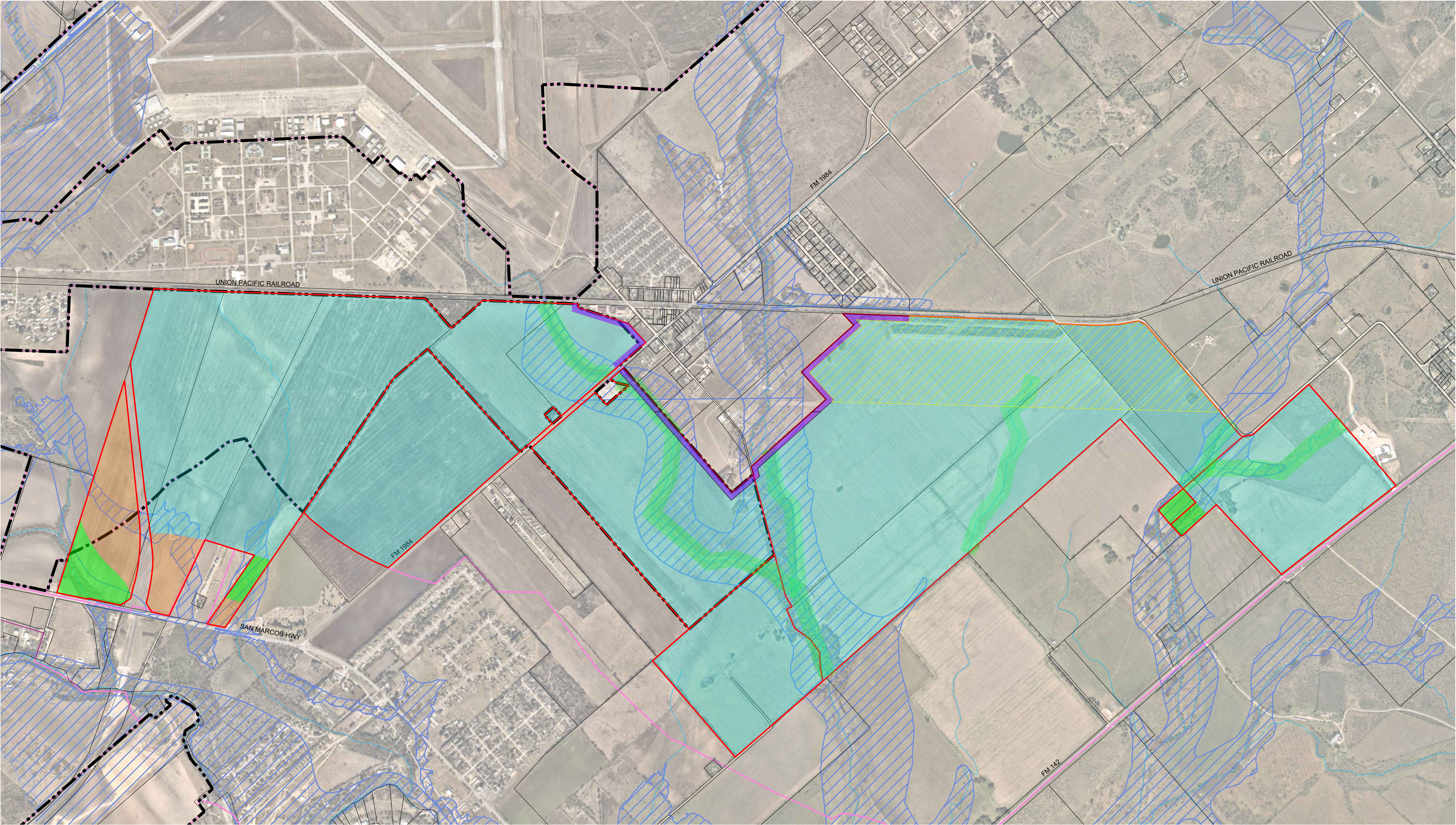
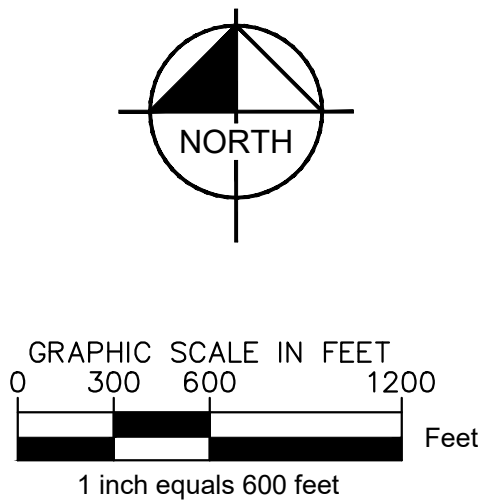
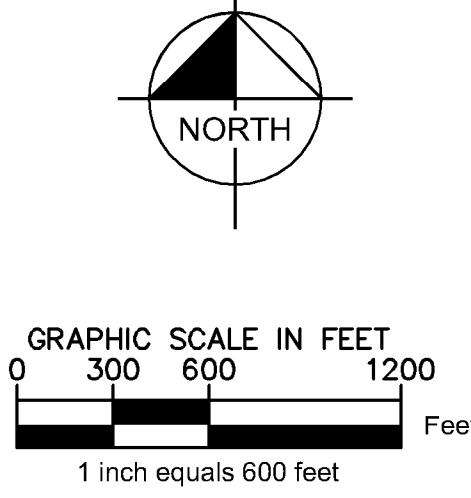


EXHIBIT G: CUT-FILL EXTENTS EXHIBIT



CUT-FILL ALLOWED UP TO 20-FEET
WITH ADMINISTRATIVE APPROVAL

CUT-FILL ALLOWED UP TO 15-FEET
WITH ADMINISTRATIVE APPROVAL

ANTICIPATED FLOODPLAIN LIMITS;
DEVELOPMENT IN THESE AREAS
SHALL COMPLY WITH CITY CODES
FOLLOWING A DETAILED
FLOODPLAIN STUDY. BUFFER
ZONES PER SAN MARCOS
DEVELOPMENT CODE SECTION
6.2.2.2 SHALL BE TWO TIMES
THOSE PRESCRIBED WIDTHS.

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PHONE: 972-770-1300
TEXAS REGISTERED ENGINEERING FIRM F-928

LEGEND

Railroads

City Limits

Extraterritorial Jurisdiction (ETJ)

Well Locations

Rivers and Streams

Waterbodies

Floodplain

Site

380 Smart AGM1

Cotton Center MUD AGMT

No AGMT

